

Matter Number:	WC / 2024 / 227
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Form 24 - Notice to admit facts

Industrial Relations Act 2016, section 989
Industrial Relations (Tribunals) Rules 2011, rules 41, 49, 108 and 113

Applicant/Appellant:	Cory Lea Shepherd
v	
Respondent:	Workers' Compensation Regulator
To:	The Workers' Compensation Regulator Attention: Ms Renee Matheson, Senior Appeals Officer

Take notice that the **appellant** in this proceeding proposes to prove the facts specified below, and if you do not within **14 days** serve a notice on the appellant disputing the facts, you are taken to admit, for this proceeding only, the facts specified in this notice.

NOTE - TRANSCRIBE ONTO THE OFFICIAL FORM. This page reproduces the layout of the approved Form 24 so the schedule can be settled and checked. Download the current Form 24 from the Commission's website and transcribe the schedule into it before service. Sign, print your name, state the office held ("Appellant") and date it.

SCHEDULE OF FACTS - SECOND NOTICE TO ADMIT FACTS

Industrial Relations (Tribunals) Rules 2011, rule 49

WC/2024/227 | Cory Lea Shepherd (Appellant) v Workers' Compensation Regulator (Respondent)

DRAFT - 20 August 2026. Schedule of facts for insertion in the approved Form 24. **Verify each quotation against the source before service.** The Source column is for the Appellant's own verification and is DELETED BEFORE SERVICE. Sections are headings only and are not numbered items.

TAKE NOTICE that the Appellant proposes to prove the facts specified below, and that if the Respondent does not, within 14 days after receiving this notice, serve a notice on the Appellant disputing those facts, the Respondent is taken to admit them for this proceeding only.

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
A	THE ROLE, AND WHAT IT REQUIRED		
1	Metro South Hospital and Health Service produced a role description for the position of Administration Officer, Switchboard Services, classification AO3, Logan Hospital.		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
2	That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
3	That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
4	That role description names the contact for the position as "Chloe Taylor".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
5	That role description states, as a key responsibility: "Maintain call queues to minimum at all times".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
6	That role description states, as a key responsibility: "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
7	That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service

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8	That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
9	That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
10	That role description states, as a key responsibility: "The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
11	That role description states, as a key responsibility: "Ability to work effectively as an individual with limited supervision to meet deadlines and establish work priorities".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
12	That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
13	That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period".		Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital - produced by Metro South Hospital and Health Service
14	The Appellant has been employed by Metro South Hospital and Health Service since 2019.		Appellant's amended statement of facts and contentions
B THE HOURS THE APPELLANT SOUGHT, AND OBTAINED			
15	On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the demands and the additional hours of the department both Patricia Conaghan and I would like to formally adhoc an additional 2 shifts per fortnight."		R_REESE
16	That email sets out clause 11.7 of the applicable agreement, headed "Additional Permanent Hours for Part-time Employees".		R_REESE
17	On 8 August 2023 at 6:06 pm the Appellant sent an email to Ms Reese which states: "I can confirm that I will be in tomorrow 0700-1500 9th August. I was also looking to pick up another shift if possible."		R_REESE
18	On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?"		R_REESE
19	On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster".		R_REESE
20	That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster."		R_REESE

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21	On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability."		R_REESE
22	That email states: "I have no issues with shift work."		R_REESE
23	That email attached a draft roster spreadsheet prepared by the Appellant.		R_REESE
24	On 8 September 2023 at 11:42 am Ms Reese sent an email to the Appellant which states: "I am glad to hear things seem to be going well with Chloe and I am also glad to hear you applied for the additional shifts through the recent EOI."		R_REESE
25	On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent Fulltime hours, I am very pleased to advise you that this has been approved."		Email of Ms C Taylor, 27 September 2023
26	That email states: "happy to commence Full-time hours from the 16th October 2023".		As above
C	STRESSOR 1(a) - THE DATABASE, AND THE DIRECTIVES ISSUED WITHOUT CONSULTATION		
27	Review Decision 69983 records: "Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, emailed the staff members on 18 July 2023 to provide an update with respect to her role."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision
28	That decision records: "She explained her role was a project role, which was a temporary position that focused on fixing the database used by the switchboard."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision
29	That decision records: "She informed that while she fixed it, she would be removing everyone's access to it, and asked for anyone who needed to amend, add or remove entries, to directly contact her or Ms Taylor."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision
30	That decision records: "On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more checks to ensure accuracy of data entry."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision
31	The Respondent does not allege that the role description for the position of Administration Officer, Switchboard Services was amended at any time after 18 July 2023.		Respondent's amended statement of facts and contentions, 13 May 2026
32	The Respondent does not allege that access to the database used by the Switchboard was restored to the Appellant at any time before 18 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
33	On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard".		Respondent's amended List of Documents, item 25 (email of 29 August 2024, attachment "Email: After hours on call process")
34	That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised."		As above
35	That email states: "This new process is effective from today."		As above
36	That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours."		As above
37	Ms Taylor signed that email as "A/Switchboard Manager".		As above
38	Ms Taylor's email to all Switchboard staff of 17 May 2024 at 9:30 am states: "My office hours can vary due to having to take my girls to school in the morning, on the days that I do have school drop off I always let switch know that I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30."		Respondent's disclosure from witness conferencing (C Taylor)

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39	That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week."		Respondent's disclosure from witness conferencing (C Taylor)
40	On 17 May 2024 at 1:20 pm Ms Taylor sent an email to Ms Adriana McNamee with the subject "FW: Office Hours and Departmental Directives", which states: "when staff call in for any leave to please contact me either via switch, office or my mobile."		Respondent's disclosure from witness conferencing (C Taylor)
D	STRESSOR 1(a) - THE DELAY IN COMMUNICATION AND THE MATTERS RAISED IN MAY 2024		
41	On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area."		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure
42	On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues."		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure
43	The email of Ms Marriott of 20 May 2024 at 11:03 am was sent five days after her email of 15 May 2024 at 11:47 am.		Respondent's disclosure - the Integrated Respiratory Service email chain, 15-20 May 2024
44	The Appellant's rostered shift on 20 May 2024 concluded at 2:00 pm.		Switchboard services roster for the fortnight commencing 13 May 2024
45	On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document: Outpatients Department - Clinic contact Details. on the 22nd of February 2024. I recommend a modification and review of the document."		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure
46	That email of the Appellant was sent five minutes after the conclusion of his rostered shift on that day.		Respondent's disclosure - the Integrated Respiratory Service email chain, 15-20 May 2024
47	That email of the Appellant was sent from the Logan Switch account.		Respondent's disclosure - the Integrated Respiratory Service email chain, 15-20 May 2024
48	On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical."		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure
49	Mr Richard Parry was at that time a member of the Switchboard staff at Logan Hospital.		Email of the Appellant of 15 May 2024 at 1:15 pm, Respondent's disclosure of 11 June 2026
50	The Respondent has not disclosed any document recording a communication sent by Ms Taylor to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.		The Respondent's disclosure in this proceeding
51	The Respondent has not disclosed any document recording a communication sent by Mr Parry to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.		The Respondent's disclosure in this proceeding

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52	The Respondent does not allege that any response was made to the email of Ms Marriott of 20 May 2024 at 11:03 am before 2:05 pm on that day.		Respondent's amended statement of facts and contentions, 13 May 2026
53	The Respondent does not allege that any response was made to the email of Ms Marriott of 15 May 2024 at 11:47 am at any time before 20 May 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
54	On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch and Switchboard staff, copied to Ms Reese, which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile."		Respondent's disclosure from witness conferencing (C Taylor)
55	That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing."		Stressor 1(a) particulars bundle served on the Respondent 11 August 2026, Tab 4; and the Respondent's own disclosure
E	STRESSOR 1(c) - THE MATTERS RAISED IN AUGUST AND SEPTEMBER 2023, AND THE RESPONSE		
56	The Appellant's email of 7 August 2023 at 12:21 pm states: "Please give me some space and stop with any further communication as I have had enough of it."		R_REESE
57	On 7 August 2023 at 1:43 pm Ms Taylor replied to the Appellant, copied to Ms Reese and Ms Smith, stating: "My sincere apologies about your rostered Monday 7th 0700-1500 shift, I can confirm this was an oversight."		R_REESE
58	That email of Ms Taylor states: "Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period".		R_REESE
59	On 7 August 2023 at 3:13 pm Ms Reese replied to the Appellant stating: "As Chloe is your current line manager and as such you are required to continue to communicate with Chloe for work related issues, shift concerns, leave, etc."		R_REESE
60	On 7 August 2023 at 5:11 pm Ms Reese sent an email to Ms Taylor attaching a document titled "Rostered shifts Cory S. past 8 months.xlsx", which states: "can I ask if you can send me an email of your recent communication with Cory about contacting yourself about missed shifts, as I could not find a copy of this email."		R_REESE
61	On 29 August 2023 at 6:57 pm Ms Reese sent the Appellant an email attaching HR Policy E12 - Individual Employee Grievances, and setting out how a grievance could be submitted.		R_REESE
62	On 4 September 2023 the Appellant replied to Ms Reese stating: "I have also spoken to Chloe. We are seemingly on the path to working in a beneficial way and hopefully will not need to go through this process."		R_REESE
63	The Appellant did not submit a grievance under HR Policy E12 in 2023.		R_REESE
F	THE PROCESS FOR NOTIFYING UNAVAILABILITY FOR A ROSTERED SHIFT		
64	On 14 May 2024 at 12:08 pm Ms Taylor sent an email to the Appellant, copied to Ms Reese, with the subject "Sick leave 14.05.24", which states: "in business hours you are to follow the correct process and speak to me directly if its regarding emergent leave, you can contact me either through switch or my office/mobile."		Respondent's disclosure from witness conferencing (C Taylor)
65	On 13, 14 and 15 May 2024 the Appellant notified his unavailability for his rostered shift by telephoning the Switchboard.		Ms Taylor's email to Ms McNamee, 17 May 2024, which records each of those three calls
66	The document entitled "Logan Hospital Switchboard Sick Leave Process", version 1.1, is dated 4 February 2025.		Attachment to the letter of Mr Scott Hughes dated 8 September 2025, page 1

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67	The Respondent does not allege that any written procedure governing the notification of unavailability for a rostered shift at Logan Hospital Switchboard existed before 4 February 2025.		Respondent's amended statement of facts and contentions, 13 May 2026
G	STRESSOR 2 - THE PAY CORRECTION, AND THE THREAD "COREY SHEPHERD 388372 PAY ISSUES"		
68	The Respondent's disclosure contains an email thread with the subject "Corey Shepherd 388372 Pay issues".		R_PAY
69	The first message in that thread is dated 3 May 2024, is from PayrollMetroSouth, is addressed to Ms C Taylor, and is copied to the Appellant.		R_PAY
70	That message is signed "Elaine Grant, Client Service Officer, Metro South Payroll Team, Payroll Transactional Services, Corporate Enterprise Solutions, Corporate Services, Queensland Health".		R_PAY
71	That message states: "Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is toping up the missing wages from his RDO balance."		R_PAY
72	That message states: "This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775."		R_PAY
73	That message states: "The same has happened for the next fortnight 19.02.24 due to 28.02.24 shift AVAC PRN 15605601 has this shift as 7hrs topping up 0.95 for missing hour."		R_PAY
74	That message states: "Fortnight 18.03.24 is the opposite and has too many ordinary shifts for the fortnight resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime."		R_PAY
75	That message states: "Fortnight 01.04.24 is the same, 0.95hrs over contracted 76hrs needs to be overtime."		R_PAY
76	That message states: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended."		R_PAY
77	The thread contains a message dated 10 May 2024 at 2:21 pm from the Appellant, addressed to PayrollMetroSouth and to Ms E Grant.		R_PAY
78	The thread contains a message dated 13 May 2024 at 8:21 am from PayrollMetroSouth, addressed to the Appellant.		R_PAY
79	That message of 13 May 2024 states: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will also be affecting your RDO balances as well as your pay."		R_PAY
80	The thread contains a message dated 21 May 2024 at 12:33 pm from Ms C Taylor, addressed to the Appellant, with the subject "RE: Corey Shepherd 388372 Pay issues".		Respondent's disclosure from witness conferencing (C Taylor)
81	That message of 21 May 2024 states: "Just letting you know that I am still I am waiting payroll confirmation about a few of these payroll issues and as soon as I do get that confirmation, I will submit an AVAC for next pay run. I will let you know PRN once it has been submitted."		Respondent's disclosure from witness conferencing (C Taylor)
82	The Respondent's disclosure contains a message dated 28 May 2024 at 8:36 am from Ms C Taylor, addressed to the Appellant and copied to Ms T Reese, with the subject "Validation of Claims older than 3 months - Please sign".		Respondent's disclosure from witness conferencing (C Taylor)
83	That message of 28 May 2024 states: "Please find attached Validation of claims older than 3 months, please sign and return to be as soon as possible so I can escalate for delegate approval."		Respondent's disclosure from witness conferencing (C Taylor)
84	The myHR submissions report produced as Item 11 records seven submissions for the Appellant in the period 1 February 2024 to 31 May 2024.		HR11
85	That report records five of those seven submissions as an "Attendance Variation and Allowance Claim (AVAC)".		HR11

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86	That report records the initiator of each of those five Attendance Variation and Allowance Claims as "Donovan-Taylor, Chloe".		HR11
87	That report records the initiator of no Attendance Variation and Allowance Claim in that period as the Appellant.		HR11
88	That report records a submission with process number 16328886 as an Attendance Variation and Allowance Claim submitted on 15 May 2024, with a processing date of 16 May 2024, and a status of "Completed".		HR11
89	That report records a submission with process number 16450619 as an Attendance Variation and Allowance Claim submitted on 28 May 2024, with an effective date of 30 March 2024, a processing date of 30 May 2024, and a status of "Part Completed".		HR11
90	That report records the status of every other Attendance Variation and Allowance Claim in the period as "Completed".		HR11
91	That report records the following process numbers with the following submission dates: 15325947, submitted 6 February 2024; 15480560, submitted 20 February 2024; 15848692, submitted 27 March 2024; 15849573, submitted 27 March 2024; 15969838, submitted 9 April 2024; 16328886, submitted 15 May 2024; and 16450619, submitted 28 May 2024.		HR11
92	In that report, process numbers increase as submission dates increase.		HR11
93	The number 15397775 falls between 15325947 and 15480560.		Arithmetic
94	The number 15605601 falls between 15480560 and 15848692.		Arithmetic
95	Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in that report.		HR11
H	STRESSOR 3 - THE ROSTER, AND THE EMPLOYER'S KNOWLEDGE OF FATIGUE BEFORE 18 JUNE 2024		
96	On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts.		R_REESE
97	That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer".		R_REESE
98	On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act."		R_REESE
99	That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback".		R_REESE
100	On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response."		R_REESE
101	On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue."		R_FRMS
102	That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run through this and we say at best there would be a rating of 11 which is moderate".		R_FRMS
103	That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters".		R_FRMS
104	That email attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline.		R_FRMS

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105	On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great."		R_FRMS
I	STRESSOR 3 - THE BREAK OF 17-18 MARCH 2024, THE 2020 AGREEMENT, AND THE LEAVE OF 19 MARCH 2024		
106	By letter dated 7 July 2026 Ms Lyndelle Forrest, Senior Consultant, Human Resources, Logan and Beaudesert Health Service, wrote to the Appellant stating that the roster "provides more than 10-hour breaks between shifts".		Letter of Ms L Forrest, Senior Consultant HR, 7 July 2026
107	That letter states: "acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred."		Letter of Ms L Forrest, Senior Consultant HR, 7 July 2026
108	The Respondent does not allege that the consecutive shifts of 17 and 18 March 2024 arose from a staff initiated shift swap.		Respondent's amended statement of facts and contentions, 13 May 2026
109	The Leave Takings Report produced by Metro South Hospital and Health Service in respect of 19 March 2024 records the Leave Category as "Sick", the Leave Type as "Sick Leave", the Time Code as "SCK", the Leave Taken as 7.60 hours, and the Leave Status as "APPROVED".		Item 15 QH Leave Takings Report, produced by Metro South Health
110	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 24(a): "says that the appellant took leave on 19 March 2024 but says this was paid leave".		Respondent's amended statement of facts and contentions, 13 May 2026
111	That amended statement of facts and contentions states at paragraph 24(b): "says that pursuant to clause 18.10 of the Award, the appellant is not entitled to fatigue leave, because he was not performing overtime".		Respondent's amended statement of facts and contentions, 13 May 2026
112	That amended statement of facts and contentions states at paragraph 27: "The respondent contends that any management action involved in the causation of any injury to the Plaintiff was reasonable management action taken in a reasonable way pursuant to s 32(5) WCRA."		Respondent's amended statement of facts and contentions, 13 May 2026
113	No fatigue leave was available to the Appellant under clause 18.10 of the Award in respect of the consecutive shifts of 17 and 18 March 2024.		Respondent's amended statement of facts and contentions, 13 May 2026, paragraph 24(b)
J	THE EMPLOYER'S OWN STATEMENTS ABOUT ITS SYSTEMS AND RECORDS		
114	By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training."		CE
115	That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard."		CE
116	That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants."		CE
117	That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested."		CE
118	That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant."		CE

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
119	That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024."		CE
K	MATTERS NOT DONE, AND MATTERS NOT AVAILABLE		
120	The Respondent does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
121	The Respondent does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
122	The Respondent does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
123	The Respondent does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
124	The Respondent has not disclosed any document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024.		Respondent's amended List of Documents dated 14 August 2026
L	STRESSOR 3(d) - THE RESPONDENT'S OWN REVIEW DECISION OF 24 OCTOBER 2024		
125	Review Decision 69983 dated 24 October 2024 records that in its response the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award which "stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision
126	That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision
127	That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision
128	That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement."		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision
129	That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision
130	That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor".		Review Decision 69983 dated 24 October 2024 - the Respondent's own decision
M	THE APPELLANT'S CONTEMPORANEOUS ACCOUNT, AND THE DOCUMENTS THE RESPONDENT LISTS		
131	The Respondent's amended List of Documents dated 14 August 2026 lists at item 12 an email from the Appellant to WorkCover Queensland dated 12 July 2024 with the attachment described as "Event overview - undated".		Respondent's amended List of Documents (Form 23) dated 14 August 2026
132	That amended List of Documents lists at item 14 an email from the Appellant to WorkCover Queensland dated 18 July 2024 with the attachment described as "Witness statement - Carolyn Jeffrey".		Respondent's amended List of Documents (Form 23) dated 14 August 2026
133	That amended List of Documents lists at item 16 an email from Ms Carolyn Jeffrey to WorkCover Queensland dated 1 August 2024 described as a follow up statement.		Respondent's amended List of Documents (Form 23) dated 14 August 2026
134	That amended List of Documents lists at item 25 an email from the Appellant to WorkCover Queensland dated 29 August 2024 described as regarding the after hours on call change, with the attachment described as "Email: After hours on call process".		Respondent's amended List of Documents (Form 23) dated 14 August 2026

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
135	That amended List of Documents lists at item 26 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: Task change switchboard - 19/04/2024".		Respondent's amended List of Documents (Form 23) dated 14 August 2026
136	That amended List of Documents lists at item 27 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: MASPER process - 09/05/2024".		Respondent's amended List of Documents (Form 23) dated 14 August 2026
137	The Appellant provided the document described at item 12 to WorkCover Queensland on 12 July 2024.		As above; and the Appellant's email of that date
138	On 11 August 2026 the Appellant served on the Respondent a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of Stressor 1(a) of the Amended Form 9A and enclosing the documents recording it.		The bundle, and the Appellant's covering email of 11 August 2026
N	MATTERS THE RESPONDENT DOES NOT ALLEGE		
139	The Respondent does not allege that the Appellant was subject to any disciplinary process at any time before 18 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
140	The Respondent does not allege that the Appellant's work performance was the subject of any formal performance management process at any time before 18 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
141	The Respondent does not allege that the Appellant was the subject of any warning, whether written or oral, at any time before 18 June 2024.		Respondent's amended statement of facts and contentions, 13 May 2026
142	The Respondent's amended statement of facts and contentions does not identify the management action referred to in paragraph 27.		Respondent's amended statement of facts and contentions, 13 May 2026

Cory Lea Shepherd
Appellant (self-represented) | [date]

SCHEDULE B - DOCUMENTS

Authenticity to be admitted | *Industrial Relations (Tribunals) Rules 2011, rule 49*

WHY THIS SCHEDULE EXISTS - internal note, delete before service. Rule 49(1) permits a party to ask another party to admit "the facts **or documents** stated in the notice", and rule 49(2) deems admission if the other party does not within 14 days serve a notice disputing "the facts **or the authenticity of the documents**". Admitted authenticity means each document below can be tendered at the hearing without being formally proved. For a self-represented appellant that removes a whole category of work and a whole category of objection.

TAKE NOTICE that the Appellant also asks the Respondent to admit, for this proceeding only, the authenticity of the documents specified below, and that if the Respondent does not within 14 days after receiving this notice serve a notice on the Appellant disputing the authenticity of those documents, the Respondent is taken to admit their authenticity for this proceeding only.

No.	Document	Date	Authenticity admitted / disputed
1	Email, the Appellant to Ms C Taylor, Ms T Reese, Ms P Conaghan and Ms T Smith, "Increase of hours and Workplace issues"	7 August 2023, 12:21 pm	
2	Email, Ms C Taylor to the Appellant, reply in the same chain	7 August 2023, 1:43 pm	
3	Email, Ms T Reese to the Appellant, reply in the same chain	7 August 2023, 3:13 pm	
4	Email, Ms T Reese to Ms C Taylor, with attachment "Rostered shifts Cory S. past 8 months.xlsx"	7 August 2023, 5:11 pm	
5	Email, Ms T Reese to the Appellant, attaching HR Policy E12 - Individual Employee Grievances	29 August 2023	
6	Document, the Appellant to Ms C Taylor, "Request to Increase Working Hours to Full Time Rotational Roster"	31 August 2023	
7	Email, the Appellant to Ms T Reese, with attached draft roster	4 September 2023	
8	Email, Ms T Reese to the Appellant	8 September 2023, 11:42 am	
9	Email, Ms C Taylor to the Appellant, "Approved - Permanent Full Time FTE"	27 September 2023, 1:52 pm	
10	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Afterhours Oncall Process - Switchboard"	15 April 2024, 12:39 pm	
11	Email, Ms T Reese to the Appellant, "Roster Concerns"	26 April 2024, 1:52 pm	
12	Email, the Appellant to Ms T Reese, "Re: Roster Concerns"	1 May 2024, 1:18 pm	
13	Email, Ms T Reese to the Appellant, "RE: Roster Concerns"	8 May 2024, 9:08 am	
14	Email, Ms T Reese to Mr M Pritchard, "FW: Roster Concerns", with attachment "qh-gdl-401-3.3"	10 May 2024, 2:08 pm	
15	Email, Ms C Taylor to the Appellant, "Sick leave 14.05.24"	14 May 2024, 12:08 pm	
16	Email, Ms S Marriott to Logan Switch, "Respiratory Nurse Educators"	15 May 2024, 11:47 am	
17	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Switchboard Manager - On call and Hours."	17 May 2024, 9:30 am	
18	Email, Ms C Taylor to Ms A McNamee, "FW: Office Hours and Departmental Directives"	17 May 2024, 1:20 pm	
19	Email, Ms S Marriott to Logan Switch, "FW: Respiratory Nurse Educators"	20 May 2024, 11:03 am	
20	Email, the Appellant (Logan Switch) to Ms C Taylor, "FW: Respiratory Nurse Educators"	20 May 2024, 2:05 pm	
21	Email, Ms C Taylor to the Appellant, "RE: Respiratory Nurse Educators"	20 May 2024, 4:30 pm	

No.	Document	Date	Authenticity admitted / disputed
22	Email, Ms T Reese to LBH_HR, "FW: Roster Concerns"	20 May 2024, 4:07 pm	
23	Document, "Logan Hospital Switchboard Sick Leave Process", version 1.1	4 February 2025	
24	Letter, Metro South Hospital and Health Service to Commissioner Dwyer, reference K-LM26/729, signed by Ms N Cridland, Chief Executive	5 June 2026	
25	Document, QH Leave Takings Report for the Appellant, produced by Metro South Health as item 15 of the Notice of non-party disclosure	19 March 2024	
26	Letter, Ms L Forrest, Senior Consultant Human Resources, Logan and Beaudesert Health Service, to the Appellant	7 July 2026	
27	Review Decision 69983, Workers' Compensation Regulator	24 October 2024	

Cory Lea Shepherd
Appellant (self-represented) | [date]

Covering email - to accompany service

To: Renee.Matheson@oir.qld.gov.au Cc: the OIR appeals registry
Subject: WC/2024/227 - Shepherd - notice to admit facts and documents

Dear Ms Matheson,

I attach a notice to admit facts and documents under rule 49 of the *Industrial Relations (Tribunals) Rules 2011*.

Schedule A sets out facts. Schedule B sets out documents, and asks that their authenticity be admitted. The documents are those already exchanged between the parties or listed in the Respondent's amended List of Documents dated 14 August 2026.

Copies of the following are enclosed, as they may not be in the Respondent's possession: the letter of Ms L Forrest dated 7 July 2026; the QH Leave Takings Report for 19 March 2024; the "Logan Hospital Switchboard Sick Leave Process" version 1.1 dated 4 February 2025; and the Stressor 1(a) particulars bundle served on 11 August 2026. I am content to provide a copy of any other document listed.

Kind regards,

Cory Lea Shepherd

Appellant (self-represented), WC/2024/227

NOTHING FURTHER. No argument, no explanation of why the notice is being served, no reference to the Further Directions Order, the withdrawn application, the report or settlement. A notice to admit speaks for itself and any covering commentary only gives something to respond to. The offer to provide copies is included because it removes the "does not have a copy" answer in advance.